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LA Public Service Commission

Michael R. Dodson
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639 Loyola Avenue, New Orleans, LA 70113

March 10, 2026

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VIA HAND DELIVERY
Mr. Brandon Frey
Executive Secretary
Louisiana Public Service Commission
Galvez Building, 12th Floor
602 North Fifth Street
Baton Rouge, Louisiana 70802

Re: Application of Entergy Louisiana, LLC For Approvals Relating to Various Purchase Agreements, and for Associated Cost Recovery
(LPSC Docket No. U-_____)

Dear Mr. Frey:

I have enclosed, on behalf of Entergy Louisiana, LLC ("ELL" or the "Company"), the original and three copies of the Company's Application for Approvals Relating to Various Puchase Agreements, and for Associated Cost Recovery. The Application is supported by the Direct Testimony and Exhibits of Michael J. Plaisance, Christan M. Smith, and Patrick A. Sullivan. Please retain the original and two copies for your files and return a date-stamped copy to our courier.

I have also enclosed five copies of the Confidential Version of the referenced filing, which is being provided under seal pursuant to the provisions of the LPSC General Order dated August 31, 1992, and Rules 12.1 and 26 of the Commission's Rules of Practice and Procedure. The confidential materials included in the filing consist of competitively sensitive market information or sensitive infrastructure information, the disclosure of which may create an artificial target for suppliers/vendors or create physical security risks. For this reason, this material is confidential and commercially sensitive. The disclosure of the information contained herein would subject not only the Company, but also its customers, to a substantial risk of harm. Accordingly, it is critical that this information remain confidential.

Please retain the appropriately marked Confidential Version for your files and return a date-stamped copy to our courier. Additional copies of the Confidential Version of this filing will be provided to appropriate representatives of the LPSC Staff and made available to other interested parties once a suitable Confidentiality Agreement has been executed.

If you have any questions, please do not hesitate to call me. Thank you for your courtesy and assistance with this matter.

Sincerely,

Michael R. Dodson

MRD/jlc
Enclosures
cc: LPSC Commissioners (*public version only via electronic mail*)

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BEFORE THE

LOUISIANA PUBLIC SERVICE COMMISSION

IN RE: **APPLICATION OF ENTERGY LOUISIANA, LLC FOR APPROVALS RELATING TO VARIOUS PURCHASE AGREEMENTS, AND FOR ASSOCIATED COST RECOVERY**	)))))	**DOCKET NO. U-_____**

APPLICATION OF ENTERGY LOUISIANA, LLC FOR APPROVALS RELATING TO VARIOUS PURCHASE AGREEMENTS, AND FOR ASSOCIATED COST RECOVERY

Pursuant to the Rules of Practice and Procedure of the Louisiana Public Service Commission (the "LPSC" or the "Commission"), Entergy Louisiana, LLC ("ELL" or "the Company") respectfully submits this Application seeking, among other things, approval of (1) an amended power purchase agreement ("PPA") entered into by ELL and Occidental Chemical Corporation ("Oxy") (the "Amended Oxy PPA"), which amends and extends (for an additional six-year term from 2028 through 2034) the 2008 PPA entered into by ELL and Oxy that was originally approved in LPSC Order No. U-28804-A and a previous amendment to which was approved in LPSC Order No. U-34303 (the original PPA, as previously amended, "Existing Oxy PPA"), and (2) three capacity credit purchase agreements ("CCPAs")—the Bayou Cove Capacity Credit Agreement ("Bayou Cove CCPA"), the Big Cajun 1, Units 1 & 2 Capacity Credit Purchase Agreement ("Big Cajun CCPA"), and the Zydeco Solar Capacity Credit Purchase Agreement ("Zydeco CCPA") (collectively, the Amended Oxy PPA, the Bayou Cove CCPA, the Big Cajun CCPA, and the Zydeco CCPA are referred to as the "Purchase Agreements"), as set forth herein. In support of this Application, ELL submits the following:

INTRODUCTION AND BACKGROUND

I.

ELL is a limited liability company duly authorized and qualified to do and doing business in the State of Louisiana, created and organized for the purposes, among others, of generating, transmitting, distributing, and selling electricity for power, lighting, heating, and other such uses; and ELL is engaged in the business thereof in fifty-eight (58) of the sixty-four (64) parishes of the State of Louisiana.

II.

As described in ELL's 2023 Final Integrated Resource Plan ("Final 2023 IRP") and as demonstrated by the record in, among other proceedings, LPSC Docket Nos. U-36697, U-37071, U-37425, and U-37801, ELL is projected to need additional long-term capacity over the course of the long-term planning horizon to replace deactivated capacity and address load growth in order to reliably serve customers. As Company witness Michael J. Plaisance explains in his Direct Testimony accompanying this Application, the Company's projected load (plus a planning reserve margin) exceeds the capacity of ELL's existing and LPSC-approved resources (as well as the resources pending before the LPSC for approval), which indicates a need for additional long-term capacity.

III.

As Mr. Plaisance further explains, and as relevant to the Amended Oxy PPA in particular, the Company has a specific need for additional energy and capacity to serve the large new load from Laidley LLC ("Laidley"), whose data center was at issue in LPSC Docket No. U-37425.

IV.

As Mr. Plaisance and Company witness Christian M. Smith explain in their respective testimony, the Company conducted a Request for Proposals ("RFP") in 2024 that solicited up to 2,000 megawatts ("MW") in the aggregate of (i) capacity, capacity-related benefits (such as capacity credits), energy, other electric products, and environmental attributes from eligible natural gas-fired generation facilities through PPAs, tolling agreements ("Tolls"), and asset acquisition agreements, and (ii) capacity credits from eligible natural gas-fired generation and renewable generation facilities through standalone capacity credit purchase agreements (the "2024 Existing Resource RFP"). The Amended Oxy PPA—which consists of largely the same terms as those included in the Existing Oxy PPA, except generally with respect to pricing, the amount of baseload capacity, and delivery term—is the result of that RFP and the subsequent commercial negotiations.

V.

As Company witness Patrick A. Sullivan explains in his Direct Testimony, the CCPAs were each presented to the Company as unsolicited offers. As Mr. Sullivan and Mr. Smith set forth in their respective testimony, the Company moved forward with, and reached agreements on, the CCPAs because each of those agreements is expected to provide much-needed capacity at a reasonable price for customers.

VI.

Because each of the Purchase Agreements provides needed capacity (and, as to the Amended Oxy PPA, energy) on a timely basis and at cost-effective pricing, the Company asks that the Commission certify the Purchase Agreements as being in the public interest and necessity

pursuant to the terms of the provisions of the Commission's 1983 General Order[1] and further approve the Company's proposal for cost-recovery, as set forth in the Application.

THE 2024 EXISTING RESOURCE RFP

VI.

As noted, the Amended Oxy PPA is the product of the 2024 Existing Resource RFP conducted for ELL in 2024. As mentioned above, and as both Company witnesses Michael J. Plaisance and Christian M. Smith discuss in their respective testimony, the 2024 Existing Resource RFP solicited up to 2,000 MW in the aggregate of (i) capacity, capacity-related benefits (such as capacity credits), energy, other electric products, and environmental attributes from eligible natural gas-fired generation facilities through PPAs, Tolls, and acquisition agreements, and (ii) capacity credits from eligible natural gas-fired generation and renewable generation facilities through standalone capacity credit purchase agreements.

VII.

The 2024 Existing Resource RFP provided that delivery terms for PPAs, Tolls, and standalone capacity purchases were required to be a minimum of one full season and could commence no earlier than August 1, 2026, and end no later than May 31, 2034 (natural gas-fired resources), or August 31, 2028 (renewable resources).

VIII.

Mr. Smith provides additional detail in his Direct Testimony of the conduct of the 2024 Existing Resource RFP, including the retention by ELL of an independent monitor (Merrimack Energy Group, Inc.), whose report is attached as an exhibit to Mr. Smith's testimony. Moreover,

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[1] The 1983 General Order was amended by General Order dated May 27, 2009, in LPSC Docket No. R-30517, *In re: Possible modifications to the September 20, 1983 General Order to allow (1) for more expeditious certifications of limited-term resource procurements and (2) an exception for annual and seasonal liquidated damages block energy purchases.*

both Mr. Smith and Mr. Plaisance discuss the results of the 2024 Existing Resource RFP, and Mr. Plaisance provides additional detail concerning the negotiation process between ELL and Oxy that resulted in the Amended Oxy PPA.

IX.

As explained by Mr. Plaisance, the 2024 Existing Resource RFP resulted in the Amended Oxy PPA, which provides needed energy and capacity for a six-year term from 2028 through 2034 and, in doing so, facilitates the continued development of Laidley's data center in Richland Parish.

THE PURCHASE AGREEMENTS

X.

As set forth above, the Company is seeking certification of the four Purchase Agreements. The first agreement—the Amended Oxy PPA—arises from a PPA that was originally executed with Oxy in 2008 and one amendment to which (in 2016, extending the PPA for an additional ten-year term from 2018 through 2028) was certified by the Commission in LPSC Docket No. U-34303. Under the Amended Oxy PPA, ELL would purchase between 480 to 520 MW (depending on the season) of capacity, energy, and related attributes from Oxy's Taft Cogeneration Facility (the "Taft Facility") on largely the same terms considered by the Commission in approving the Existing Oxy PPA, other than generally pricing, the amount of baseload capacity, and delivery term. The term of the Amended Oxy PPA would begin immediately after the end of the Existing Oxy PPA and would run from June 1, 2028 through May 31, 2034.

XI.

As Mr. Plaisance also explains in his Direct Testimony, the Amended Oxy PPA will provide a source of both energy and capacity in the Company's Amite South Planning Area, which is a load pocket that receives certain benefits from having local generation for supply needs. Mr.

Plaisance further describes that the products included in the Amended Oxy PPA can assist with a variety of resource planning assumptions, including by assisting with the Company's baseload and load-following supply needs.

XII.

Importantly, as mentioned above, the Amended Oxy PPA will (if approved by the Commission) form part of the supply plan for the ramp-up period of resources needed to serve the data center project being built by Laidley that was at issue in LPSC Docket No. U-37425; thus, revenues from Laidley pursuant to its Electric Service Agreement ("ESA") with ELL will offset the capacity-related costs of the Amended Oxy PPA.

XIII.

The Bayou Cove CCPA and Big Cajun CCPA are agreements between ELL and Pelican Power, LLC that provide for ELL's purchase of the accredited zonal resource credits ("ZRCs") associated with the Bayou Cove and Big Cajun 1, Units 1 & 2 Facilities, respectively. Mr. Plaisance discusses the terms of those two agreements in his Direct Testimony, including the pricing for the ZRCs and the agreements' fifteen-year terms that run from June 1, 2027 through May 31, 2042.

XIV.

The Zydeco CCPA is an agreement between ELL and Zydeco Solar, LLC for ELL's purchase of the accredited ZRCs associated with the 100 MW Zydeco Solar Facility in Evangeline Parish, Louisiana. Like with the Bayou Cove CCPA and Big Cajun CCPA, Mr. Plaisance discusses the terms of the Zydeco CCPA in his Direct Testimony, including the pricing for the ZRCs and the fact that the agreement includes a fifteen-year term that commences in the first Planning Year of the Midcontinent Independent System Operator, Inc. ("MISO") in which the resource is eligible

to provide ZRCs after commercial operation, but no sooner than June 1, 2027, and no later than June 1, 2028.

XV.

Notably, the three CCPAs—the Bayou Cove CCPA, the Big Cajun CCPA, and the Zydeco CCPA—are being pursued to assist with the Company's overarching capacity need and to correspondingly support overall capacity exposure. As a result of the purchase of ZRCs under the CCPAs, the Company will be able to receive revenues from the MISO Planning Resource Auction ("PRA") and will also be able to use the ZRCs to satisfy a portion of the Planning Reserve Margin Requirement established by MISO for ELL.

ECONOMIC ANALYSIS OF THE PURCHASE AGREEMENTS

XVI.

Company witness Christian M. Smith provides the Company's economic analyses of each of the Purchase Agreements. With respect to the Amended Oxy PPA, ELL performed a Net Benefit analysis that measured ELL's total cost of supplying service to ELL customers with the addition of the Amended Oxy PPA to the Company's resource portfolio. As Mr. Smith explains, the "Total Supply Cost Savings" associated with the Amended Oxy PPA is simply the difference between ELL's Total Supply Cost under the base case in which the Amended Oxy PPA is not added to the Company's planned portfolio compared to ELL's Total Supply Cost with the addition of the Amended Oxy PPA. The effect of the Amended Oxy PPA on Total Supply Cost was evaluated over the PPA's six-year term and utilized a $MM net present value (NPV) net benefit metric to evaluate the benefits from the agreement.

XVII.

With respect to the CCPAs, the economic analyses for those agreements entailed estimating the annual fixed cost rate associated with each agreement and then comparing the estimated fixed costs to ELL's cost of a new-build combustion turbine ("CT") generator based on the Company's Business Plan 2026 ("BP2026"). Each of the CCPAs was also compared to third party forecasts of the MISO PRA, such as the Wood Mackenzie (MISO Zone 9) Forecast, the IHS PRA Forecast for the MISO South, and the BP25 Entergy PRA Forecast (LRZ 9). Additionally, a projected net capacity value was calculated by applying the price differential of the CCPA pricing and ELL's long-term avoided capacity cost to the estimated accredited capacity of each CCPA to determine an expected net capacity value over the life of the contracts.

XVIII.

As set forth more fully in Mr. Smith's Direct Testimony, ELL's economic analyses demonstrate that each of the Purchase Agreements is expected to result in economic benefits for the Company's customers. As to the Amended Oxy PPA, the Company's analysis resulted in a range of positive net benefits under the reference case described by Mr. Smith, ranging from $61.5 million on the low side to $148.7 million on the high end. With respect to the CCPAs, the Bayou Cove CCPA, Big Cajun CCPA, and Zydeco CCPA are expected to produce net capacity value of $207 million, $152 million, and $36 million (all 2026$ NPV), respectively. Thus, the Purchase Agreements are cost-effective resources that assist with the Company's capacity (and, as to the Amended Oxy PPA, energy) needs.

REQUESTED REGULATORY APPROVALS

XIX.

As Company witness Patrick A. Sullivan explains in his Direct Testimony, the Company is asking the Commission to acknowledge that it may become necessary for the Company to seek rate relief if, during the six-year term of the Amended Oxy PPA or the fifteen-year terms of the CCPAs, the Company should experience adverse financial implications resulting from debt imputation or lease accounting in connection with the Purchase Agreements.

XX.

As Mr. Sullivan explains, the Company works to maintain a credit rating that supports a low total cost of capital for customers, while providing the financial stability and flexibility for the Company to support the safe and reliable operation of its business. There is a risk that transactions like the Purchase Agreements could affect the Company's credit ratings to the extent that the imputation of debt becomes a more significant factor in the Company's credit profile. This imputation could cause the Company to have to take action—and to incur costs—to maintain its investment grade credit rating and to avoid a variety of potential increased costs to customers that would result from a sub-investment grade credit downgrade, such as increased borrowing costs of capital.

XXI.

In light of this risk, the Company asks that the Commission recognize, in its Order approving the Purchase Agreements, that the Company is entitled to rate relief as determined by the Commission to address the potential adverse effects of debt imputation or lease accounting, and to commit that the Commission will determine the form of and provide such relief in a timely manner.

XXII.

In addition, the Company asks that the Commission approve the terms of the Purchase Agreements and, in doing so, accept the well-defined recourse that ELL and its customers have under the Purchase Agreements in the event of non-performance. As Mr. Sullivan explains, ELL will not own or operate the facilities underpinning the Purchase Agreements, and the terms of the Purchase Agreements do not provide ELL with any right to direct or manage the operations or maintenance of the underlying facilities (or, in the case of the CCPAs, even the right to the actual energy output of the resources). ELL accordingly seeks the Commission's specific confirmation that, in approving the Purchase Agreements, it is approving the adequacy of the contractual rights and remedies that ELL has negotiated with the counterparties to protect against potential risks.

PROPOSED COST RECOVERY

XXIII.

Company witness Patrick A. Sullivan provides the estimated first-year revenue requirements for each of the Purchase Agreements as well as the estimated impact on residential customers' bills.

XXIV.

Mr. Sullivan also describes the Company's proposal for recovery of the costs incurred in connection with the Purchase Agreements. As to the CCPAs and the capacity portion of the Amended Oxy PPA, Mr. Sullivan explains the Company's proposal that, if the current or a substantially similar Formula Rate Plan ("FRP") is in place for a period that includes the test year in which those sales start, the capacity costs associated with the agreements should be deemed eligible for recovery pursuant to the terms of the FRP's Additional Capacity Mechanism ("ACM")

(specifically, Paragraph 3.D.2)[2] of ELL's FRP or the purchased capacity cost recovery mechanism (or other method of cost recovery approved by the Commission) of any extension or renewal of the Company's FRP.

XXV.

Mr. Sullivan further proposes that, in the event the current FRP terminates without extension or renewal or a new FRP is implemented that does not have the referenced provisions of the ACM, the Company should be allowed to defer the costs that would otherwise be included in an FRP during the period from the incurrence of the costs until such time as the costs can be reflected in rates. The Company also requests that it be allowed to accrue interest on the net-of-tax balance of the deferred capacity costs at a rate equal to the Company's then-effective weighted average cost of capital.

XXVI.

As to the energy-related costs for the Amended Oxy PPA, the Company proposes that all variable energy-related payments associated with Products A, B, and C under the Amended Oxy PPA should be recovered via the Company's Fuel Adjustment Clause ("FAC"). These variable energy-related costs include the energy component, variable operations and maintenance ("O&M") costs, and any applicable start-up costs incurred in connection with the Amended Oxy PPA.

XXVII.

Lastly, Mr. Sullivan and Mr. Plaisance both discuss another category of potential costs under the Amended Oxy PPA—so-called Change-in-Regulation Costs—that were also included in

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[2] Mr. Sullivan also explains the Company's alternative proposal that the costs associated with the Zydeco CCPA (which is associated with a solar resource) could be recovered through the ACM pursuant to Paragraph 3.D.3 of Rider FRP.

the provisions of the Existing Oxy PPA (although they have never been incurred). Mr. Plaisance explains this category of costs in greater detail, including the division of those costs between Amortized Change-in-Regulation Costs and Unamortized Change-in-Regulation Costs.

XXVIII.

As to Amortized Change-in-Regulation Costs, Mr. Sullivan explains the Company's proposal that the Commission should deem the Amortized Change-in-Regulation Costs eligible for recovery, dollar-for-dollar, outside of any sharing mechanisms, via either FRP or base rates at the next FRP or base rate change after these costs begin to be incurred. The Company also proposes that the Commission permit the Company to defer the incremental, jurisdictional Amortized Change-in-Regulation Costs incurred under the Amended Oxy PPA to the extent that such costs are not being recovered in rates or through the FAC, and that the Commission authorize the Company to accrue a return on the net-of-tax deferred balance at a rate equal to the Company's then-effective weighted average cost of capital, until such time as the costs are included in the ACM or other applicable rate recovery mechanism.

XXIX.

With respect to Unamortized Change-in-Regulation Costs, Mr. Sullivan explains that, because the amount of these costs, if any, is unknown, the costs should be recoverable through ELL's Environmental Adjustment Clause ("EAC") or alternatively through ELL's FAC. Specifically, the Company proposes that the Commission approve the recovery, through the FAC, of all Unamortized Change-in-Regulation Costs that are not specifically includable in ELL's EAC.

COMPLIANCE WITH COMMISSION ORDERS

XXX.

Mr. Sullivan explains in detail in his Direct Testimony the reasons for which the Company asserts the Commission should find that the Company has complied with the requirements of the 1983 General Order and that the Purchase Agreements should accordingly be certified. Mr. Sullivan further discusses that the Amended Oxy PPA complies with the applicable version of the MBM Order[3] and that the CCPAs comport with the terms and purpose of the Commission's Unsolicited Offers General Order.[4]

XXXI.

Mr. Sullivan further discusses the reasons for which the Company asserts the Commission should find that certification of the Purchase Agreements is in the public interest. In particular, based on the capacity need set forth in Mr. Plaisance's Direct Testimony, Mr. Sullivan explains that each of the Purchase Agreements provide opportunities for ELL to acquire capacity to assist with its needs on a timely basis, thus supporting the Company's capacity exposure in a time when the market for capacity in MISO is tightening. Mr. Sullivan further explains that, as supported by Mr. Plaisance's Direct Testimony, the Purchase Agreements advance the Company's resource planning objectives of providing reliable service to its customers at the lowest reasonable cost and

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[3] *See* LPSC Docket No. R-26172, Sub-Docket C, *In re: Possible suspension of, or amendments to, the Commission's General Order dated November 3, 2006 (Market Based Mechanisms Order) to make the process more efficient and to consider allowing the use of on-line auctions for competitive procurement*, as amended October 29, 2008. As Mr. Sullivan and Mr. Plaisance discuss in their Direct Testimony, the MBM Order was amended in October 2024, but those amendments applied prospectively and thus did not apply to the 2024 Existing Resource RFP, which was initiated (and in which the window to submit proposals had been closed for two months) before the amendments were approved by the Commission. *See generally* General Order 10-14-2024 (R-34247) (Oct. 14, 2024), LPSC Docket No. R-34247, *In re: Rulemaking to consider changes to Commission General Order dated October 29, 2008 (Docket No. R-26172 Subdocket C) ("Market Based Mechanisms Order") to incorporate formal complaint procedures.*

[4] LPSC General Order dated October 15, 2008, in Docket No. R-30703, *In re: Consideration of procedures whereby jurisdictional electric utilities must provide the Commission Staff with notice of unsolicited offers, as well as their response to, and analysis of, unsolicited offers.*

in a manner consistent with principles of prudent resource planning, including through the fact that each of the agreements' terms allow for the Company to ensure it is satisfying its requirements in the near term while limiting overall commitment and exposure. Further, Mr. Sullivan explains that, based on the Direct Testimony of Mr. Smith, the Purchase Agreements are cost-effective sources of capacity (and, as to the Oxy Amended PPA, energy) for ELL's customers. Lastly, Mr. Sullivan explains that the Purchase Agreements will facilitate continued economic growth and development in Louisiana, including (as to the Amended Oxy PPA in particular) the continued development of the transformative data center project in Richland Parish by Laidley. Based on these considerations, Mr. Sullivan opines that approval of the Purchase Agreements should be considered by the Commission to be in the public interest.

COMPANY WITNESS TESTIMONY

XXXII.

In support of this Application, the Company presents testimony supporting a finding that the Purchase Agreements are in the public interest and necessity and, therefore, are prudent. The testimony accompanying the Application describes the Company's resource planning process and needs, the 2024 Existing Resource RFP, certain key aspects of the Purchase Agreements, and the anticipated costs and benefits associated with the Purchase Agreements.

XXXIII.

The Direct Testimony and associated exhibits for the following witnesses supporting the requested relief are attached hereto and filed herewith as part of this Application. It is anticipated that these witnesses, as well as any necessary rebuttal witnesses, will be called to testify at the hearing of this matter on the subjects indicated below:

- Michael J. Plaisance, who is employed by ELL as Senior Manager, Resource Planning, provides an overview of the Company's Application and request for relief as well as descriptions of the 2024 Existing Resource RFP, the Company's current resource portfolio and plans to meet the long-term supply needs of its customers, the manner in which the Purchase Agreements are significant to fulfilling the Company's supply plan and resource needs, and various terms and provisions included in each of the Purchase Agreements.
- Christian M. Smith, who is employed by ESL as Manager, Advanced Economic Planning for SPO, testifies concerning the conduct and results of the 2024 Existing Resource RFP and provides economic analyses for each of the Purchase Agreements.
- Patrick A. Sullivan, who is employed by ELL as Manager, Regulatory Affairs, presents the Company's proposed cost-recovery methodology for the Purchase Agreements and discusses the rationale for seeking such cost recovery for the CCPAs (and the capacity portion of the Amended Oxy Agreement) through the ACM while seeking recovery of the variable energy-related payments of the Oxy Amended PPA through the Company's FAC. Mr. Sullivan also discusses a proposed cost-recovery methodology for Change-in-Regulation Costs under the Amended Oxy PPA, which the Company proposes to recover, if incurred, through the Company's EAC or FAC, as appropriate. Mr. Sullivan further identifies the regulatory approvals required under Commission General Orders and explains the reasons for which the Commission should find that ELL has complied with the LPSC's Orders and for which certification of the Purchase Agreements should be found to be in the public interest.

REQUEST FOR TIMELY TREATMENT

XXXIV.

As explained in the Direct Testimony of Michael J. Plaisance and Patrick A. Sullivan, the Company is seeking timely approval of its Application based on regulatory approval deadlines included in certain of the Purchase Agreements. In particular, certain of the Purchase Agreements include a requirement that the Company achieve necessary regulatory approvals by February 2027, or else either party to the underlying agreement may seek to terminate the underlying agreement. As set forth above, the Company has a significant need for additional capacity to serve its customers (including, as to the Amended Oxy PPA, to serve Laidley), and the Purchase Agreements are cost-effective resources that form a critical component of the Company's overall resource plan. If the Company does not receive timely approval of the Purchase Agreements—leading to any of the parties to move on from one or more of the underlying agreements—the Company will be required to seek out alternative sources of capacity at a time when the need has only grown more acute (and the timeline for finding an alternative has only grown shorter). Further, as Mr. Sullivan explains in his testimony, the requested timeline is longer than the 120-day timeframe included in the 1983 General Order and is therefore not a request for an expedited approval. The Company therefore asks that the Commission consider ELL's Application at or before its December Business & Executive Session meeting scheduled for December 16, 2026, in order that, if the Commission certifies the Purchase Agreements, the Commission's Order will be final by the relevant February 2027 regulatory approval dates.

SERVICE OF NOTICE AND PLEADINGS

XXXV.

The Company requests that notices, correspondence, and other communications concerning this Application be directed to the following persons:

Lawrence J. Hand, Jr.
Patrick A. Sullivan
4809 Jefferson Highway
Mail Unit: L-JEF-357
Jefferson, Louisiana 70121
Telephone: (504) 840-2528
Facsimile: (504) 840-2681
lhand@entergy.com
psulli2@entergy.com

Matthew T. Brown
Michael R. Dodson
639 Loyola Avenue
Mail Unit L-ENT-26E
New Orleans, Louisiana 70113
Telephone: (504) 576-4122
Facsimile: (504) 576-5579
mbrow12@entergy.com
mdodso1@entergy.com

ELL requests that the foregoing persons be placed on the Official Service List for this proceeding and respectfully requests that the Commission permit the designation of more than one person to be placed on the Official Service List for service in this proceeding.

REQUEST FOR CONFIDENTIAL TREATMENT

XXXVI.

Certain materials and/or information that may be produced in connection with this matter could contain information considered by the Company and/or third parties to be proprietary and confidential. Disclosure of certain information may present an unreasonable risk of harm to ELL, its customers, and third parties. Therefore, in light of the sensitive nature of such information, the Company intends to submit two versions of any such confidential and proprietary materials and/or information, one marked "Non-Confidential Redacted Version" and the other marked "Confidential Version." The Confidential Versions will bear the designation "Highly Sensitive Protected Materials" or words of similar import. Although confidential information and documents that may be produced in discovery in this matter may be viewed by appropriate

representatives of the LPSC Staff and intervenors pursuant to the terms and conditions of a suitable confidentiality agreement once such an agreement has been executed in this Docket, this confidential information also is being provided pursuant to, and shall be exempt from public disclosure pursuant to, the Commission's General Order dated August 31, 1992 and Rule 12.1 of the Rules of Practice and Procedure of the Commission.

PRAYER FOR RELIEF

XXXVII.

THEREFORE, Entergy Louisiana, LLC respectfully requests that the Commission, subject to the fullest extent of its jurisdiction, grant relief and give its approval as follows:

1. Find that the Purchase Agreements serve the public convenience and necessity and are in the public interest, and are therefore prudent, in accordance with the Commission's 1983 General Order;
2. Find that (i) the decision to enter into the Amended Oxy PPA is consistent with the terms of the Commission's MBM Order (or, alternatively, with the Commission's Unsolicited Offers General Order), and (ii) the decision to enter into the CCPAs is consistent with the terms of the Commission's Unsolicited Offers General Order, or (iii) alternatively the Company is entitled to an exemption with respect to any applicable, requirement of the MBM Order that is unmet with respect to any of the Purchase Agreements;
3. Recognize, in the Order approving the Purchase Agreements, that the Company is entitled to rate relief as determined by the Commission to address any adverse effects of debt imputation or lease accounting that could result from the Purchase Agreements, and to

commit that the Commission will determine the form of and provide such relief in a timely manner;

4. Approve the terms, conditions, rights, remedies, and limitations set forth in the Purchase Agreements and confirm that ELL, its member entity, and Entergy Corporation shall not be responsible, beyond the remedies specified in the Purchase Agreements, for any acts or omissions by the counterparties, each of their employees, or their contractors of any tier in connection with the counterparties' ownership or operation of the facilities underlying the Purchase Agreements, including, without limitation, the failure by those counterparties to deliver the contracted products under the Purchase Agreements;
5. Find that all variable energy-related payments associated with Products A, B, and C of the Amended Oxy PPA, including the energy component, variable O&M, and any applicable start-up costs, are eligible for recovery through ELL's FAC;
6. Find that the capacity-related costs of the Purchase Agreements are eligible for recovery through the then-effective FRP, and more specifically the ACM of the FRP, or, in the alternative, in the event the current FRP terminates without extension or renewal or a new FRP is implemented that does not have the referenced or similar provisions of the ACM, that ELL may defer the capacity-related costs associated with the Purchase Agreements and accrue interest on a net-of-tax basis at the then-current weighted average cost of capital until such time that the costs can be reflected in rates;
7. Authorize the Company to recover through the EAC the Unamortized Change-in-Regulation Costs incurred under the Amended Oxy PPA related to Tax and Emission

Allowance Costs passed through to the Company in accordance with the Amended Oxy PPA's contractual terms and actually incurred by the Company;

8. Authorize the Company to recover through the FAC the Unamortized Change-in-Regulation Costs incurred under the Amended Oxy PPA that are otherwise not properly includable in ELL's EAC but that are properly passed through to the Company in accordance with the Amended Oxy PPA's contractual terms and actually incurred by the Company;

9. Deem the Amortized Change-in-Regulation Costs incurred under the Amended Oxy PPA eligible for incremental recovery through either FRP or base rates at the next FRP rate adjustment or base rate change after these costs commence to be incurred, and, further, that the Commission permit the Company to defer the incremental, jurisdictional Amortized Change-in-Regulation Costs incurred under the Amended Oxy PPA to the extent that such costs are not being recovered in rates or through the FAC, and that the Commission authorize the Company to accrue a return on the net-of-tax balance of such deferred costs at the then-current weighted average cost of capital until such time that the costs can be reflected in rates;

10. Rule that, with respect to the Purchase Agreements, the Company has complied with, or is not in conflict with, the provisions of all applicable LPSC Orders, including the Commission's Unsolicited Offers General Order;

11. Find, as provided in the Commission's Special Order No. 7-2000, dated March 22, 2000, that the confidential testimony, exhibits, and other materials referenced in the Application shall be exempt from public disclosure pursuant to the Commission's General Order dated

August 31, 1992 and Rule 12.1 of the Rules of Practice and Procedure of the Louisiana Public Service Commission;

12. Direct that the period for interventions and protests be shortened to fifteen (15) days;
13. Direct the Administrative Hearings Division to adopt a procedural schedule necessary to facilitate a decision no later than the Commission's December 2026 Business and Executive Session;
14. Direct that notice of all matters in these proceedings be sent to Matthew T. Brown and Michael Dodson as counsel of record for the Company, and to Lawrence J. Hand and Patrick A. Sullivan as representatives of the Company; and
15. Order such other general and equitable relief as to which the Company may show itself so entitled.

Respectfully submitted,

By: _____

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